

**PLACER COUNTY SUPERIOR COURT
CIVIL LAW AND MOTION TENTATIVE RULINGS
TUESDAY, JULY 7, 2026**

These are the tentative rulings for civil law and motion matters set at **8:30 a.m. on Tuesday, July 7, 2026**. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., Monday, July 6, 2026**. Notice of request for oral argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date, and after approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

Except as otherwise noted, these tentative rulings are issued by the **HONORABLE TRISHA J. HIRASHIMA** and if oral argument is requested, it will be heard at 8:30 a.m. in **Department 32**, located at 10820 Justice Center Drive, Roseville, California 95678.

PLEASE NOTE: REMOTE APPEARANCES ARE STRONGLY ENCOURAGED FOR ALL CIVIL LAW AND MOTION MATTERS. (Local Rule 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

1. M-CV-0088382 Bank of America v. Hovsepian, Sahaq Bishara

Motion to Vacate Dismissal and Enter Judgment under Settlement

Plaintiff's request for judicial notice is granted.

Plaintiff's unopposed motion to set aside dismissal and enter judgment for plaintiff as against defendant is granted. (Code Civ Proc., § 664.6.) Dismissal entered on March 19, 2025 is vacated and judgment is entered for plaintiff in the total amount of \$2,686.70 (principal in the amount of \$2,103.09 and court costs in the reduced amount of \$583.61, as this motion fee was a mere \$60.00).

2. M-CV-0095441 Iver Capital Corp. v. Alvarado, Amber

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for judgment on the pleadings

Plaintiff moves for judgment on the pleadings. Defendant has not filed a response.

“A motion for judgment on the pleadings is the functional equivalent of a general demurrer.” (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) As such, the grounds for the motion for judgment on the pleadings must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) Further, the court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court may take judicial notice of a defendant’s uncontroverted admissions in responses to request for admissions or interrogatories. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485; *see also Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital LLC v. Cobb* (2019) 7 Cal.5th 156.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Spencer*, 88 Cal.App.5th at 861.)

Defendant admitted the allegations of the complaint in her answer. As defendant filed no opposition to the present motion, the evidence presented is unopposed on the record. (*Arce* 181 Cal.App.4th at 485; *Evans* 28 Cal.App.4th at 549.) Defendant motion alleges the costs of the suit are \$468.50, but defendant has not submitted a memorandum of costs in support.

Based on the foregoing, plaintiff’s motion for judgment on the pleadings is granted. Accordingly, judgment is entered in favor of plaintiff for the principal of \$17,851.63; for pre-judgment interest (at the legal rate of ten percent (10%) per annum from March 3, 2023,) to the date judgment is entered, as alleged in the complaint; and for \$960.00 in attorney’s fees. Plaintiff is awarded costs of suit in an amount to be determined upon filing and service of a memorandum of costs.

3. S-CV-0052372 Baddawi, Samira v. Mi Pueblito Taqueria

Defendants’ joint motion to compel neuropsychological examination of plaintiff is continued to **July 14, 2026, at 8:30 a.m. in Department 32.**

4. S-CV-0053711 City of Lincoln v. The Gathering Inn

If oral argument is requested, it will be heard in **Department 32** by the Honorable Trisha J. Hirashima.

Motion for Protective Order and Motion to Quash

Plaintiff moves for a protective order to prevent defendant The Gathering Inn from taking the deposition of current City Councilmember Ben Brown and former City Councilmember Paul Joiner. Plaintiff also moves to quash the deposition subpoena as to former Councilmember Joiner. Defendant opposes the motion.

Preliminary Matters

Defendant's opposition is also entitled a "Cross-Motion to Compel Brown and Joiner Depositions." However, as plaintiff is entitled to a noticed motion with full briefing, the court declines to consider the "Cross-Motion to Compel" as anything more than an opposition to plaintiff's motion.

Plaintiff's request for judicial notice is granted.

Ruling on the Motion

On a showing of good cause, the court has the discretion to make orders to protect any party from "unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Code Civ. Proc., § 2025.420, subd. (a).) "[T]he court, upon motion reasonably made by any [party or witness], . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a).)

Plaintiff argues that defendant is searching for evidence to support its claim of discrimination but that this is not relevant given the court's ruling sustaining a demurrer on defendant's affirmative defense for discrimination. This argument fails, as the parties have stipulated and the court has approved that defendant may file its cross-complaint including discrimination claims. (Order filed June 30, 2026.)

Plaintiff argues the deposition of Councilmember Brown is prevented by the "Apex" rule, where courts have found a party may not depose high ranking public officials unless they can show the witness has direct personal information pertaining to a material issue in the action and that the information is not otherwise obtainable. (*Contractors' State License Bd. V. Super. Court* (2018) 23 Cal.App.5th 125, 131.) While defendant presents evidence tending to indicate Councilmember Brown may have direct personal information pertaining to material issues in this action (he attended a City Council meeting where he signaled his approval to various remarks, he attended and gave a speech at a protest against defendant's project, and the City Council met in a closed session 3 days after the protest and unanimously voted to sue defendant), defendant presents insufficient evidence to support a finding that this information would not be otherwise obtainable. Based on the information provided to the court, it appears the deposition of Councilmember Brown should not be taken. (Code Civ. Proc., § 2025.420, subd. (b)(1).)

Plaintiff also argues the deliberative process privilege applies here, as "the disclosure of materials would expose an agency's decision-making process in such a way as to discourage candid discussion within an agency and thereby undermine the agency's ability to perform its function." (*Times Mirror Co. v. Super. Court* (1991) 53 Cal.3d 1325, 1342.) Evidence Code section 1040 authorizes a public entity to refuse to disclose

official information if the privilege is claimed and disclosure is forbidden by federal or state law or if disclosure is against the public interest. Plaintiff's motion falls short of making this showing under Section 1040 because it cannot be said disclosure is forbidden by any law nor can it be said that disclosure of discriminatory conduct by public officials as alleged would go against the public interest. Moreover, plaintiff acknowledges in its briefing that if defendant had a discrimination claim, these depositions might be appropriate because they might lead to evidence to prove or disprove defendant's claims. As the parties have stipulated and the court has approved leave for defendant to file its cross-complaint, this argument at this stage in the proceedings lacks merit.

Finally, plaintiff argues the attorney-client privilege applies. However, plaintiff provides insufficient information for the court to determine whether the attorney-client privilege is in fact implicated.

Based on the foregoing, the motion for protective order is granted as to Councilmember Brown under the Apex rule and his deposition shall not be taken. The motion for protective order and the motion to quash are denied as to former Councilmember Joiner.

Motion for Protective Order and Motion to Quash Deposition Subpoena

Plaintiff moves for a protective order to prevent defendant The Gathering Inn from taking the deposition of current City Councilmember Holly Andreatta and moves to quash the deposition subpoena for documents. Defendant opposes the motion.

Preliminary Matters

Defendant's opposition is also entitled a "Cross-Motion to Compel Production of Documents from 'Lincoln against TGI' Facebook Group." However, as plaintiff is entitled to a noticed motion with full briefing, the court declines to consider the "Cross-Motion to Compel" as anything more than an opposition to plaintiff's motion.

Plaintiff's request for judicial notice is granted.

Ruling on the Motion

On a showing of good cause, the court has the discretion to make orders to protect any party from "unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (Code Civ. Proc., § 2025.420, subd. (a).) The court may issue a protective order precluding production of documents designated in a deposition notice. (Code Civ. Proc., § 2025.420, subd. (b)(11).) "[T]he court, upon motion reasonably made by any [party or witness], . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc., § 1987.1, subd. (a).)

Plaintiff raises numerous arguments as to the documents requested by way of deposition subpoena, several of which may be disposed of quickly. As discovery is broad and need only be reasonably calculated to lead to the discovery of admissible evidence pursuant to Code of Civil Procedure section 2017.010, plaintiff's relevance and "fishing expedition" arguments lack merit. A quick review of the requested documents in the separate statement shows the requests are described with reasonable particularity pursuant to Code of Civil Procedure section 2020.410(a).

Plaintiff also argues the requests are overbroad, impact third-party privacy interests, and that the time and money it would take to produce these documents would be unduly burdensome to third-party Councilmember Andreatta. These three arguments require more attention. As to overbreadth, the requests pertain to "all posts," "all comments," and "all reactions." As this information is not limited to the posts, comments, and reactions of city officials, the requests are overbroad. As to the related concern of third-party privacy interests, associational rights come within the right to privacy as one of several inalienable rights guaranteed to all persons. (Cal. Const., art. I, § 1.) "The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. [Citation.]" (*Williams v. Super. Court* (2017) 3 Cal.5th 531, 552, citation omitted.) Here, the privacy interests of many non-city officials are implicated by the requests and defendant has not shown what counter-veiling interests disclosure would serve as to the non-city officials. Plaintiff has shown good cause for the court to issue a protective order in part.

As to undue burden, the party or affected person seeking a protective order "shall bear the burden of demonstrating that the information is from a source that is not reasonably accessible because of undue burden or expense." (Code Civ. Proc., § 2025.420, subd. (c).) Towards that end, plaintiff submits the declaration of nonparty Councilmember Holly Andreatta who declares that there are hundreds of posts and comments on this page, the vast majority of which are not hers, and that it would take "dozens of hours" sifting through the page to print each page and its corresponding comments and reactions separately. Doing so would be at significant expense because it would require numerous color ink cartridges to print from her home computer. Councilmember Andreatta also presents evidence she is not an administrator of the Facebook group and would not have the ability to show posts that were deleted, removed, or hidden by administrators, for example. Councilmember Andreatta has sufficiently shown full responses to the requests for production would be unduly burdensome.

Based on the foregoing, the motion to quash is denied. The motion for protective order is granted in part, and defendant's requests for production numbers 1 through 4 are limited to responses pertaining only to city officials who held public office at some point from the date the Facebook group was created in August 2024 to the date of this order. The motion for protective order is granted as to requests for production numbers 5 through 10 and Councilmember Andreatta need not respond to them.

Motion to Compel Further Responses

Plaintiff moves to compel defendant to provide further responses to requests for admissions numbers 11 through 22 and form interrogatory number 17.1 pursuant to Code of Civil Procedure sections 2033.290 and 2030.300. Defendant opposes the motion.

Plaintiff's unopposed request for judicial notice is granted.

Plaintiff's motion to compel further responses is denied as it does not appear requests for admissions numbers 11 through 22 and form interrogatory number 17.1 are "reasonably calculated to lead to the discovery of admissible evidence" pertaining to plaintiff's nuisance claim, any affirmative defense thereto, or the forthcoming cross-complaint.

Motion to Compel

Defendant moves to compel production of documents from "Lincoln Against TGI" Facebook group against non-party witnesses Ashley Allen and Donelle Collins ("nonparty deponents"). Nonparty deponents and plaintiff oppose the motion.

Defendant presents evidence it personally served on nonparty deponents deposition subpoenas with requests for production of documents on March 3, 2026. Defendant presents evidence it received identical objections from each nonparty deponent, wherein they objected as non-parties to the litigation under Code of Civil Procedure section 1987.1. Nonparty deponents argue they are not parties to this litigation, the private Facebook group contains approximately 2,100 members (the overwhelming majority of whom are not parties to this lawsuit), and the subpoenas are overbroad, invade the privacy rights of numerous third-parties, and impose an undue burden on them. Nonparty deponents ask the court to deny the motion or, in the alternative, or to narrow the required responses to specific individuals, communications, or issues directly relevant to the litigation.

The privacy argument as to third-parties is well-taken for the same reasons as outlined above in the court's ruling on plaintiff's motion for protective order and to quash deposition subpoena. As to undue burden, the party or affected person seeking a protective order "shall bear the burden of demonstrating that the information is from a source that is not reasonably accessible because of undue burden or expense." (Code Civ. Proc., § 2025.420, subd. (c).) Towards that end, nonparty deponent Donelle Collins declares a manual review of thousands of posts would be required which would take "many hours, and potentially dozens of hours, locating, reviewing, identifying, collecting, and attempting to produce responsive information." Nonparty deponent has sufficiently shown full responses to the requests for production would be unduly burdensome.

Based on the foregoing, defendant's motion to compel is granted in part and denied in part. The motion to compel is denied as moot as to requests for production numbers 1 through 4, in light of the above ruling on plaintiff's motion for protective order and to

quash deposition subpoena. The motion to compel is granted as to requests for production numbers 5, 9, and 14. The motion to compel is granted in part as to requests for production numbers 6 through 8 and 10 through 13, although responses shall be limited to city officials who held public office at some point from the date the Facebook group was created in August 2024 to the date of this order.

Motion for Stay

Plaintiff the City of Lincoln's motion for stay was withdrawn by stipulation of the parties. (Order filed June 30, 2026.)

Motion for Leave to File a Cross-Complaint

Defendant The Gathering Inn's motion for leave to file a cross-complaint was granted on June 30, 2026 by stipulation of the parties. (Order filed June 30, 2026.)

5. S-CV-0054113 Christenson, Kyle D v. Auburn CDJR

Defendant's Motion for Judgment on the Pleadings

Defendant moves for judgment on the pleadings as to plaintiff's complaint in its entirety. Plaintiff opposes the motion.

"A motion for judgment on the pleadings is the functional equivalent of a general demurrer." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) The grounds for the motion must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) The court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court may take judicial notice of a defendant's uncontroverted admissions in responses to request for admissions or interrogatories. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485; *see also Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital LLC v. Cobb* (2019) 7 Cal.5th 156.) The court, however, does not accept the truth of "conclusions of fact or law, opinions, speculation, or allegations contrary to law or judicially noticed facts." (*Spencer*, 88 Cal.App.5th at 861.)

Plaintiff's first cause of action alleges general negligence. Plaintiff alleges his Dodge RAM caught fire after defendant performed repair services by replacing a fuel system part covered by a recall and that defendant has admitted fault. (See complaint at 4.) Plaintiff alleges damages caused by defendant's negligent repairs. Defendant argues this claim is barred by the economic loss rule. (Mot. J. Pleadings at 3-4.)

The economic loss rule provides that, "[i]n general, there is no recovery in tort for negligently inflicted 'purely economic losses,' meaning financial harm unaccompanied by physical or property damage." (*Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 922.) For claims arising from

alleged product defects, “[e]conomic loss consists of ‘damages for inadequate value, costs of repair and replacement of the defective product or consequent loss of profits—without any claim of personal injury or damages to other property.’” (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988.)

...

“the rule functions to bar claims in negligence for pure economic losses in deference to a contract between litigating parties.” (*Sheen, supra*, 12 Cal.5th at p. 922, citing *Robinson, supra*, 34 Cal.4th at p. 988 and other cases.) The Restatement states this form of the economic loss rule as follows: “[T]here is no liability in tort for economic loss caused by negligence in the performance or negotiation of a contract between the parties.” (Rest.3d Torts, Liability for Economic Harm, § 3; see *Sheen, supra*, at p. 923.)

(*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 837-38.)

As noted in *Dhital*, the economic loss rule bars tort claims where the *litigating parties* have a contractual relationship and the alleged financial harm arises from performance of that contract and does not include other physical or property damage. However, in this case plaintiff does not allege a contractual relationship with the defendant and defendant confirms there is no such relationship. *Dhital* does not stand for the proposition that the economic loss rule prohibits tort claims between parties who are not in contractual privity with each other. Further, considering the allegations of the complaint as a whole, the court cannot find as a matter of law that the economic loss rule applies and bars plaintiff’s claim.

As to the first cause of action for negligence, defendant’s motion for judgment on the pleadings is denied.

Plaintiff’s second cause of action alleges intentional tort/intentional interference with contractual relations. Defendant argues the claim fails because defendant does not owe a duty to plaintiff for prejudgment damages and the claim is barred by the litigation privilege. (Mot. J. Pleadings at 4-7.)

“To prevail on a cause of action for intentional interference with contractual relations, a plaintiff must plead and prove (1) the existence of a valid contract between the plaintiff and a third party; (2) the defendant’s knowledge of that contract; (3) the defendant’s intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage.” (*Reeves v. Hanlon* (2004) 33 Cal.4th 1140, 1148.) Plaintiff alleges defendant has admitted fault for the fire which totaled his vehicle but has refused to pay plaintiff for either the truck or his lost income. (Compl. at 4.) Plaintiff alleges defendant was informed that its failure to either repair, replace or pay for the vehicle, or provide a suitable substitute vehicle, was and is causing plaintiff to be unable to perform his contractual work obligations. (Compl. at 5.)

Here, the complaint fails to allege sufficient facts to state a claim for intentional interference with contractual relations. As to the second cause of action for intentional interference with contractual relations, defendant's motion for judgment on the pleadings is granted. The motion is granted without leave to amend as plaintiff fails to satisfy his burden of demonstrating the existence of additional factual allegations which could cure the deficiencies.

Defendant shall file an answer to plaintiff's complaint on or before **July 17, 2026**.

6. S-CV-0054901 Zehring, Richard v. General Motors

Motion to Compel Deposition

Plaintiff moves for an order compelling deposition of defendant's person most qualified ("PMQ") and production of deposition documents pursuant to Code of Civil Procedure section 871.26(c) and imposing monetary sanctions of \$2,500 against defense counsel pursuant to Code of Civil Procedure section 871.26(j). The motion is unopposed.

Plaintiff's motion was filed on January 20, 2026. However, plaintiff's evidence in support of motion showed the deposition of defendant's PMQ was scheduled by fourth amended deposition notice for February 3, 2026 and that plaintiff anticipated defendant would not comply with the deposition date. As there is no evidence the deposition of defendant's PMQ did not proceed as scheduled on February 3, 2026, the court previously continued this motion to permit plaintiff to update the court on whether deposition occurred. (Law and motion minutes, Jun. 9, 2026.) However, plaintiff has not filed any updates for the court.

Plaintiff has not submitted any evidence that the deposition of defendant's PMQ did not proceed as scheduled. The motion to compel deposition is denied without prejudice. The motion for monetary sanctions is likewise denied without prejudice.

7. S-CV-0057527 Alothman, Esra v. Alshannag, Safa

This tentative ruling is issued by **Commissioner Michael A. Jacques**. If oral argument is requested, it will be heard on **July 9, 2026, at 8:30 a.m. in Department 33** before Commissioner Michael A. Jacques.

Defendant's Motion to Set Aside

Defendant moves to set aside this court's order for a civil harassment restraining order. Plaintiff opposes the motion.

Although the California Constitution requires the appointment of an interpreter for an accused in a criminal case (Cal. Const., art. I § 14), and Evidence Code section 752 requires the appointment of an interpreter for a witness who is not fluent in English, there

is no requirement that an interpreter be appointed for a civil litigant. (*Jara v. Municipal Court for San Antonio Judicial District* (1978) 21 Cal.3d 181, 185, 186.)

Upon review of the court record, there is no written record of the stipulation to a commissioner hearing the case. Therefore, defendant's motion is granted.

As a matter of convenience, rather than vacating the long-term order and reinstating the temporary order, the long-term order will remain in place pending retrial. This matter is set for trial assignment on **July 29, 2026, at 8:30 a.m. in Department 3**, which is located at **101 Maple Street, Auburn**.

As this order renders plaintiff's motion for attorney's fees not ripe for review, the hearing on that motion set for July 22, 2026, is hereby vacated.

8. S-CV-0057553 In re the petition of Wepaymore Funding

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Petition for Approval of Transfer of Structured Settlement

The petition for approval of transfer of structured settlement payment rights is granted as prayed. In determining whether a proposed transfer should be approved, the court reviews the request to verify that the transfer is fair, reasonable, and in the payee's best interest. (Ins. Code, § 10139.5 (b).) The totality of the payee's circumstances is viewed in light of the factors articulated in Insurance Code section 10139.5 (b)(1) through (15).

The court has carefully reviewed the petition, supporting declarations, and related attachments in light of the factors found in Insurance Code section 10139.5 (b) and finds (1) the transfer is in the best interest of the payee; (2) the payee has been provided a written advisement to seek independent professional advice regarding the transfer and has knowingly waived the right to receive such advice; (3) the notification, disclosures, and transfer agreement comply with the requirements of Insurance Code sections 10136, 10138, and 10139.5; (4) the transfer does not contravene applicable law or order of the court; (5) the payee understands the terms of the transfer agreement; and (6) the payee does not wish to cancel the transfer agreement. Based upon the foregoing, the court approves the transfer.

9. S-CV-0057615 In re the petition of JG Wentworth Originations

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Petition for Approval of Transfer of Structured Settlement

The first amended petition for approval of transfer of structured settlement payment rights is granted as prayed. In determining whether a proposed transfer should be approved, the court reviews the request to verify that the transfer is fair, reasonable, and in the payee's best interest. (Ins. Code, § 10139.5 (b).) The totality of the payee's circumstances is viewed in light of the factors articulated in Insurance Code section 10139.5 (b)(1) through (15).

The court has carefully reviewed the petition, supporting declarations, and related attachments in light of the factors found in Insurance Code section 10139.5 (b) and finds (1) the transfer is in the best interest of the payee; (2) the payee has been provided a written advisement to seek independent professional advice regarding the transfer and has knowingly waived the right to receive such advice; (3) the notification, disclosures, and transfer agreement comply with the requirements of Insurance Code sections 10136, 10138, and 10139.5; (4) the transfer does not contravene applicable law or order of the court; (5) the payee understands the terms of the transfer agreement; and (6) the payee does not wish to cancel the transfer agreement. Based upon the foregoing, the court approves the transfer.
